Kevin D. Turnage
1003 E Pinto Ct.
Gilbert, AZ 85296
Phone: 901-220-8664
Email: kdturnage@protonmail.com

December 31, 2025

Google LLC
Legal Department / Subpoena Compliance
1600 Amphitheatre Parkway
Mountain View, CA 94043

Re: Litigation-Hold Request and Anticipated Fed. R. Civ. P. 45 Production – Google Account *kdturnage@gmail.com*
Case No. CV-25-03367-PHX-SMB (U.S. District Court, District of Arizona)

Dear Counsel:

I am the plaintiff in the above-referenced federal action and write to provide **formal notice of preservation obligations** and to request **voluntary production** of electronically stored information ("ESI") in advance of anticipated third-party process under **Federal Rule of Civil Procedure 45**.

Account Compromise and Disablement

On or about **December 18, 2025**, my Google account (**kdturnage@gmail.com**) was unlawfully accessed and subsequently disabled by Google. Since that time, Google has not provided any actionable appeal or data-retrieval mechanism, including access to Google Takeout, temporary read-only reinstatement, or backend-assisted export.

Relevance to Pending Federal Litigation

The emails, attachments, documents, and Google Drive files associated with this account constitute **relevant and material evidence** in **CV-25-03367-PHX-SMB**, currently pending in the **United States District Court for the District of Arizona**. The records include communications and documents directly bearing on claims and defenses in the action.

Preservation Notice (Litigation Hold)

This letter places Google on **formal notice** of its obligation to **preserve all data** associated with the above-identified account that is within Google's possession, custody, or control, including but not limited to:

- Gmail content (sent, received, drafts, trash, spam);
- Attachments;

- Google Drive files and folders;
- Metadata (timestamps, headers, file properties);
- Account activity and access logs, where maintained; and
- Administrative or enforcement records relating to the account's access, compromise, suspension, or disablement.

This obligation applies regardless of the account's current status and includes any data stored in backup, archive, or secondary systems.

Request for Voluntary Compliance in Lieu of Subpoena

To avoid unnecessary burden and formal subpoena issuance, I respectfully request that Google, within a reasonable time, provide **one** of the following:

1. Access to **Google Takeout** for the account;
2. Temporary **read-only reinstatement** solely for the purpose of exporting data; or
3. **Backend-assisted production** of the account data in a reasonably usable electronic format (e.g., native Google export, PST/EML with metadata, or other standard format).

This request does **not** seek reinstatement for ongoing use and does **not** challenge Google's enforcement of its Terms of Service. It is limited strictly to **preservation and production of discoverable ESI** relevant to pending litigation.

Anticipated Rule 45 Process

Absent voluntary compliance, I anticipate issuing a **Rule 45 subpoena** seeking production of the account contents and records reflecting Google's actions concerning the account's compromise, suspension, and any appeal or review. Production would be appropriately limited in scope and format consistent with Rules 45 and 34.

Response Requested

Please confirm in writing **no later than ten (10) business days** from the date of this letter—**by January 14, 2026**—that Google will preserve the data and indicate the method by which production will be made. If Google contends that no retrieval mechanism is available, please state that position **in writing**, including the specific basis.

Thank you for your prompt attention. Please direct any response to the contact information above.

Respectfully,

Kevin Turnage

Digitally signed by Kevin Turnage
Date: 2025.12.30 22:56:32 -07'00'

Kevin D. Turnage
Plaintiff